

26STCV05355 26STCV05355

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-11

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Case Number: 26STCV05355 Hearing Date: August 11, 2026 Dept: 512

HEARING DATE: Tues., August 11, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Bo

v. The Madison Collection LLC COMP.

FILED: 02-17-26

CASE NUMBER: 26STCV05355

NOTICE: NO

PROCEEDINGS: MOTION

TO SET ASIDE DEFAULT

MOVING PARTY: Defendant

The Madison Collection LLC

RESP. PARTY: None

MOTION TO SET ASIDE DEFAULT

(CCP § 473(b))

TENTATIVE RULING:

Defendant The Madison Collection LLC's

unopposed Motion to Set Aside and/or Vacate Default Pursuant to Code Civil

Procedure section 473 is CONTINUED to Thursday, September 10, 2026, at 9:00

a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Defendant is to file and serve proper proof of service and notice of hearing of the Motion.

Moving party is ordered to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of August 7, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 7, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On February 17, 2026, Plaintiff Zhengfeng

Bo ("Plaintiff") filed the instant action against Defendant The Madison

Collection LLC ("Defendant") and Does 1-10, alleging causes of action for

Account Stated, Breach of Written Contract, and Common Count. (Compl., p. 1.)

On March 30, 2026, default was entered against Defendant.

On July 20, 2026, Defendant filed and

served the instant Motion to Set Aside and/or Vacate Default Pursuant to Code Civil Procedure section 473 (the "Motion").

To date, no Opposition has been filed.

II.

Procedural

Issues

As an initial matter, the Court finds that the Motion and notice of hearing was untimely filed and served. Indeed, the Motion was electronically filed and served by email on July 20, 2026, which is less than 16 court days and two calendar days prior to the instant hearing date. (Code Civ. Proc., § 1005.)

Notably, there is no Opposition filed to the Motion.

The Court may not rule on the Motion absent proper service and notice of hearing.

Thus, the Motion is CONTINUED to allow Defendant to file proper proof of service and notice of hearing of the Motion.

III.

Conclusion

& Order

For the foregoing reasons, Defendant The Madison Collection LLC's unopposed Motion to Set Aside and/or Vacate Default Pursuant to Code Civil Procedure section 473 is CONTINUED to Thursday, September 10, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Defendant is to file and serve proper proof of service and notice of hearing of the Motion.

Moving party is ordered to give notice.